

HOUSE No. 1686

The Commonwealth of Massachusetts

PRESENTED BY:

Kimberly N. Ferguson and Meghan K. Kilcoyne

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to a commission to study the intentional misrepresentation of a service animal.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/10/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>2/4/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>1/24/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/21/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/16/2025</i>
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>1/13/2025</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>4/2/2025</i>
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>2/5/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/25/2025</i>

HOUSE No. 1686

By Representatives Ferguson of Holden and Kilcoyne of Clinton, a petition (accompanied by bill, House, No. 1686) of Kimberly N. Ferguson, Sean Garballey and others for an investigation by a special commission (including members of the General Court) relative to the intentional misrepresentation of a service animal. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to a commission to study the intentional misrepresentation of a service animal.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. (a) There shall be a special legislative commission established pursuant to
2 section 2A of chapter 4 of the General Laws to study and report on the use of service animals in
3 the commonwealth. The commission shall consist of 17 members: 2 of whom shall be the chairs
4 of the joint committee on the judiciary or their designees, who shall serve as co-chairs; 1 of
5 whom shall be appointed by the speaker of the house of representatives; 1 of whom shall be
6 appointed by the senate president; 1 of whom shall be appointed by the house minority leader; 1
7 of whom shall be appointed by the senate minority leader; 1 of whom shall be the governor or
8 their designee; 1 of whom shall be the attorney general or their designee; 1 of whom shall be the
9 director of the Massachusetts office on disability or their designee; 1 of whom shall be the
10 executive director of the Massachusetts commission against discrimination or their designee; 1 of
11 whom shall be the executive director of the municipal police training committee established
12 pursuant to section 116 of chapter 6 of the General Laws or their designee; 1 of whom shall be

the executive director of the mental health legal advisors committee established pursuant to section 34E of chapter 221 of the General Laws or their designee; 1 of whom shall be the president and chief executive officer of the Massachusetts Restaurant Association, Inc. or their designee; and 4 members who shall be appointed by the governor, 1 of whom shall be a professional service dog organization headquartered in the commonwealth accredited by Assistance Dogs International, specializing in public advocacy and education and the training of service dogs that has been in existence for not less than 46 years and has placed not less than 900 service dogs in the commonwealth, 1 of whom shall be a representative from Tanglewood in the town of Lenox, 1 of whom shall be a member of an association advocating for the interests of retailers in the commonwealth and 1 of whom shall be a person with a disability who resides in the commonwealth who is an employee of a service dog training team in which the service dog has received its training from an Assistance Dogs International accredited service dog organization.

(b) The study shall include, but shall not be limited to: (i) reviewing current federal, state and local laws and procedures governing the use of service animals; (ii) examining the use and benefit of service animals by individuals with disabilities; (iii) investigating the presence, prevalence and impact of fraud, misrepresentation and other misuse of service animals; (iv) researching laws and practices in other jurisdictions with the objective to deter the misuse of service animals; and (v) identifying training and educational opportunities aimed at increasing understanding of laws governing the use of service animals among public officials, law enforcement, business owners and members of the public. The commission shall report on: (A) recommending changes to laws governing the use of service animals, if any, including the definition of “service animal” and whether to introduce legislation prohibiting and civilly

36 penalizing service animal fraud; and (B) determining the feasibility of certifying, registering or
37 licensing service animals.

38 (c) The commission shall file its report not later than April 1, 2026 with the clerks of the
39 house of representatives and the senate, the chairs of the house and senate committees on ways
40 and means and the chairs of the joint committee on the judiciary.